

NOTICE OF THE CLERK

In the Supreme Court of the United States
OCTOBER TERM, 1994

JAMES D. RYDER, PETITIONER

v.

THE UNITED STATES OF AMERICA, RESPONDENT

**PETITION FOR A WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF
MILITARY APPEALS**

PETITION FOR A WRIT OF CERTIORARI

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48 pp

QUESTION PRESENTED

May the *de facto* appointment rationale be relied upon to affirm the acts of civilians improperly appointed to serve as military appellate judges by the Judge Advocate General of an Armed Force, who is not authorized to make appointments under the Appointments Clause of the Constitution, when those acts include affirming criminal convictions on direct appeal?

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The petitioner, James D. Ryder, respectfully prays that a writ of certiorari issue to review the judgment and opinion of the United States Court of Military Appeals entered in this proceeding.

OPINIONS BELOW

The decision of the United States Court of Military Appeals, *United States v. Ryder*, 39 M.J. 454 (C.M.A. 1994) is reprinted as Appendix A at App. 1a. The opinion of the United States Coast Guard Court of Military Review, *United States v. Ryder*, 34 M.J. 1077 (C.G.C.M.R. 1992), is reprinted as Appendix B at App. 11a. The further decision of the United States Coast Guard Court of Military Review on reconsideration, *United States v. Ryder*, 34 M.J. 1259 (C.G.C.M.R. 1992), is reprinted as Appendix C at App. 23a.

JURISDICTION

The decision of the Court of Military Appeals was issued on 23 June 1994. The jurisdiction of this Court is invoked under Article 67a of the Uniform Code of Military Justice, 10 U.S.C. § 867a (Supp. II 1990) and 28 U.S.C. § 1259(3)(Supp. II 1990).

CONSTITUTIONAL PROVISIONS AND STATUTES INVOLVED

The Appointments Clause, U.S. Const. Art. II, § 2, Cl. 2, provides:

The President . . . shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the Supreme Court, and all other officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law; but the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.

The relevant provision of the Uniform Code of Military Justice, Article 66, 10 U.S.C. § 866, is set forth in Appendix D at App. 26a.

STATEMENT OF THE CASE

Petitioner was a Boatswain's Mate Second Class (pay grade E-5), U.S. Coast Guard, at the time of his court-martial. He was tried by a general court-martial composed of officer and enlisted members. Contrary to his pleas, he was convicted of various drug-related violations of the Uniform Code of Military Justice (UCMJ). His approved sentence consists of confinement for three years, forfeiture of \$699 per month for thirty-six months, reduction

to the lowest enlisted grade (E-1), and a dishonorable discharge. Both the Coast Guard Court of Military Review and the U.S. Court of Military Appeals affirmed his conviction and sentence. App. 11a, 23a, 1a.

The legal background of this issue is critical to a full understanding of this petition. Under Article I of the Constitution, Congress has established a three-tier system of military courts. At the top is the Court of Military Appeals, which has five civilian judges appointed by the President with the advice and consent of the Senate for fixed terms of office. Art. 142, UCMJ, 10 U.S.C. § 942 (1988). The appointments of the Court of Military Appeals judges are not at issue here.

Below the Court of Military Appeals are four Courts of Military Review; one each for the Army, Air Force, Navy-Marine Corps, and Coast Guard. Absent waiver by an accused, the Courts of Military Review are required to review all cases in which a death sentence, confinement for one year or more, a dismissal, or a dishonorable or bad-conduct discharge is part of the approved sentence. Art. 66(b), UCMJ, 10 U.S.C. § 866(b) (1988). Courts of Military Review exercise all of the traditional powers of appellate courts, including those under the All Writs Act. 28 U.S.C. § 1651(a); *see Dettinger v. United States*, 7 M.J. 216 (C.M.A. 1979). Additionally, these courts exercise an "awesome, plenary, *de novo* power of review[.]" *United States v. Cole*, 31 M.J. 270, 272 (C.M.A. 1990). Thus, a court of military review "may affirm only such findings of guilt and the sentence as it finds correct in law and fact [I]t may weigh the evidence, judge the credibility of witnesses, and determine controverted questions of fact[.]" Art. 66(c), UCMJ, 10 U.S.C. § 866(c) (1988). Military appellate judges are selected and assigned to the Court of Military Review by the judge Advocate General of the Service. Art. 66(a), UCMJ, 10 U.S.C. § 886(a). The

Judge Advocate General is the official for each service who is responsible for the overall supervision of military justice matters. *See* Art. 6(a), UCMJ, 10 U.S.C. § 806(a) (1988). In this case, the Judge Advocate General of the Coast Guard is the General Counsel of the Department of Transportation. Art. 1(1), UCMJ, 10 U.S.C. § 801(1) (1988). The Judge Advocate General is neither the President, the head of a department, or a court of law; accordingly, the appointment to judicial service in the Armed Forces by the Judge Advocate General does not satisfy the Appointments Clause. *See Weiss v. United States*, 114 S. Ct. 752 (1994). However, with respect to military judges who are commissioned officers, the prior appointment by the President and confirmation by the Senate as a military officer does satisfy the Appointments Clause. *Id.*

The Coast Guard Court of Military Review, which reviewed this case, presently consists of five appellate military judges, two of whom are civilians (Chief Judge Baum and Judge Bridgman) and three of whom are Coast Guard commissioned officers. These judges were appointed by the Judge Advocate General. *United States v. Carpenter*, 37 M.J. 291, 294 (C.M.A.), *cert. pending*, No. 93-676, 62 U.S.L.W. 3411 (1993); Art. 66(a), UCMJ, 10 U.S.C. § 866(a) (1988). The Courts of Military Review are typically divided into three-member panels to hear cases; petitioner's case was reviewed by such a three-member panel which included both Chief Judge Baum and Judge Bridgman. App. 12a, 24a.

Courts-martial are presided over by military judges who are military officers. Art. 26, UCMJ, 10 U.S.C. § 826 (1988). A court-martial can try any offense committed by a member of the armed services; the sole requirement for court-martial jurisdiction over the accused is that the accused was on active duty in the military at the time of the

offense. *Solorio v. United States*, 483 U.S. 435 (1987). A general court-martial (the type at which petitioner was tried) may impose sentences that include death, imprisonment for life or a term of years, total forfeiture of pay and allowances, and a dishonorable or bad-conduct discharge (or a dismissal if the accused is an officer). Art. 18, UCMJ, 10 U.S.C. § 818 (1988). A bad-conduct or dishonorable discharge carries a permanent stigma, and it can have an adverse impact on civilian job opportunities, as well as on certain government-provided benefits. See *United States v. Ohrt*, 28 M.J. 301 (C.M.A. 1989); *United States v. Maharajh*, 28 M.J. 797 (A.F.C.M.R. 1989) (Lewis, J., concurring).

All military trial judges and most appellate military judges are commissioned officers and lawyers on active duty in their services. In *Weiss*, this Court held that the commissioned officers, having already been appointed by the President as officers, did not need to be separately appointed as judges to be properly appointed under the Appointments Clause. *Weiss*, 114 S. Ct. at 760. However, the Court specifically declined to apply that conclusion to the appointment of civilians to service courts of military review. *Weiss*, 114 S. Ct. at 757 fn. 4. The Court noted that the "constitutionality of the provision allowing civilians to be assigned to Courts of Military Review, without being appointed pursuant to the Appointments Clause, obviously presents a quite different question. See Art. 66(a), UCMJ, 10 U.S.C. § 866(a). It is not at issue here." *Id.*

This case involved trial by a general court-martial presided over by military judges who were commissioned officers. The case was, in due course, reviewed in the Coast Guard Court of Military Review by a panel of judges consisting of one commissioned officer and two civilians. The issue of the appointment of the military trial

and Court of Military review judges to perform judicial duties was raised before the Court of Military Review and the Court of Military Appeals. The Court of Military Appeals exercised its discretionary jurisdiction to consider petitioner's claim that the manner in which the trial and appellate military judges in his case were appointed violated the Appointments Clause of the Constitution. The court's decision addressed that issue in a footnote only, relying on its previous decision in *United States v. Carpenter*, 37 M.J. 291 (C.M.A.), *cert. pending*, No. 93-676, 62 U.S.L.W. 3411 (1993), and this Court's decision in *Weiss v. United States*, 114 S. Ct. 752 (1994) to reject petitioner's contentions. App. 2a.

The Court of Military Appeals' consideration of the issue of the appointment of civilian Court of Military Review judges produced four published opinions by the judges, though all judges voted to affirm that case. *United States v. Carpenter*, *supra*. Judge Gierke, joined by Judge Cox, authored the opinion of the court. Relying on the Court of Military Appeals decision in *Weiss*,¹ he first concluded that the military judge who tried Carpenter's case and two of the three Coast Guard Court of Military Review judges (the two who were commissioned officers on active duty) who reviewed the case were appointed consistently with the Appointments Clause. *Carpenter*, 37 M.J. at 293. However, with respect to the third member of the Court of Military Review panel in the *Carpenter* case, Chief Judge Baum, who is a civilian, the *Weiss* decision was not controlling.

The Government argued at the Court of Military Appeals in *Carpenter* that Chief Judge Baum's (and, by implication, Judge Bridgman's) appointment to the Court of

¹ *Carpenter* was decided by the Court of Military Appeals before this Court's decision in *Weiss*.

Military Review by the Judge Advocate General was a proper appointment because the Judge Advocate General was acting by delegation from the Secretary of Transportation, the head of a department. The court rejected that argument, holding that the appointment power is not delegable. *Carpenter*, 37 M.J. at 294.

The Government next argued that, as a retired military officer, Chief Judge Baum² was not a civilian, but remained a commissioned officer whose appointment as such made a separate appointment as a court of military review judge unnecessary in accordance with the *Weiss* decision. The court also rejected that contention. The court noted that Chief Judge Baum was employed and serving in a civilian, not a military, billet, he had not been recalled to active duty, and that judicial duties are not germane to the duties of a retired officer, because a retired officer has no duties. *Carpenter*, 37 M.J. at 295. Judge Bridgman also is employed and serving in a civilian billet, and has not been recalled to active duty to perform his judicial duties.

The court then correctly concluded that Chief Judge Baum's (and, by implication, Judge Bridgman's) appointment to the court of military review was defective. *Carpenter*, 37 M.J. at 295. However, it afforded *de facto* validity to the acts of the Chief Judge, relying on *Buckley v. Valeo*, 424 U.S. 1 (1976), and a January 15, 1993, memorandum of the Secretary of Transportation purporting to appoint the judges of the Coast Guard Court of Military Review, including Chief Judge Baum.³ *Carpenter*, 37 M.J. at 295 and 294 fn. 1.

² Judge Bridgman is also a retired military officer. See *United States v. Kovac*, 36 M.J. 521, 525 (C.G.C.M.R. 1992).

³ On January 15, 1993, the then-Secretary of Transportation, Andrew Card, signed a memorandum purporting to appoint the judges of the Coast Guard Court of Military Review, including Chief

Judge Baum and Judge Bridgman. Because this action occurred well after the decisions of that court in this case, it is not at issue here. In any event, however, the effect of the Secretary's action is in question. The Court of Military Appeals apparently believed that the Secretary's memorandum cured any Appointments Clause problems for the judges named. *Carpenter*, 37 M.J. at 294 fn. 1. However, the court's comment on this matter is not conclusive. That specific issue was not briefed in *Carpenter*. Any comment on the matter was simply *dicta*, because the Secretary's memorandum was signed nearly a year after the Court of Military Review issued its opinion in the case. See *United States v. Carpenter*, 34 M.J. 681 (C.G.C.M.R. 1992). Furthermore, petitioner contends that the memorandum of the Secretary is of no effect. The Secretary of Transportation has no explicit authority under the law to appoint the judges of the Court of Military Review. The Uniform Code of Military Justice authorizes the Judge Advocate General of each service to appoint the judges of the service Court of Military Review, not the Secretary. Art. 66(a), UCMJ, 10 U.S.C. § 866(a); but see *United States v. Senior*, 36 M.J. 1016 (C.G.C.M.R. 1993). The legal provision which generally permits the Secretary to appoint officers of the Department of Transportation should not be applied to support the Secretary's action. See 49 U.S.C. § 323(a). It is a well-settled rule of statutory interpretation and application that, where two statutory provisions deal with the same subject, one is general in its application and the other specific, and the two provisions are in conflict, the specific statutory provision is to be applied. 82 C.J.S. *Statutes* § 369 (1953); 73 Am. Jur. 2d *Statutes* § 257 (1974). That is exactly the situation involved here. The two statutes in question are Art. 66(a), UCMJ, 10 U.S.C. § 866(a), and 49 U.S.C. § 323(a). Both statutory provisions concern, at least in part, the appointment of officers of the United States within the Department of Transportation. One provision is general and one specific in terms of appointment of officers. Article 66(a), UCMJ, is specific in that it addresses only the appointment of the judges of the Courts of Military Review; 49 U.S.C. § 323(a) is general in that it addresses the appointment powers of the Secretary generally, Department-wide. The two provisions are in conflict. In Art. 66(a), UCMJ, Congress directed the service Judge Advocate General to appoint the judges of the service Court of Military Review. In 49 U.S.C. § 323(a), Congress authorized the Secretary of Transportation to appoint officers of the Department generally, not specifically naming any particular officers or positions. Therefore, it is clear that the rules of statutory interpretation and ap-

Chief Judge Sullivan concurred based on the *de facto* appointment rationale. *Carpenter*, 37 M.J. at 300. Judge Crawford concurred in the result with respect to the Appointments Clause issue, relying on her separate opinion in *Weiss*. *Carpenter*, 37 M.J. at 300. Judge Wiss also concurred in the result with respect to the Appointments Clause issue, also relying on the *de facto* appointment rationale. *Carpenter*, 37 M.J. at 300-301.

REASONS FOR GRANTING THE WRIT

This petition raises an issue important to the military justice system. With respect to the question presented, a related issue has been previously raised to and decided by this Court in *Weiss v. United States*, 114 S. Ct. 752 (1994). This Court has also agreed to decide another related issue in *Federal Election Comm'n v. NRA Political Victory Fund*, 6 F.3d 821 (D.C. Cir. 1993), *cert. granted*, No. 93-1151, 129 L. Ed. 2d 832 (1994). This petition, however, presents an issue not directly addressed in this Court's decision in *Weiss*—the appointment by the Judge Advocate General of an Armed Force of civilians to serve as military appellate judges on the service Court of Military Review, and the remedy available to an appellant who raises this issue during the direct appeal of his case. This petition seeks to ensure that the separation of powers requirements and protections embodied in the Appointments Clause are available to those tried by courts-martial whose cases are reviewed by the Courts of Military Review.

plication require that the specific provision, Art. 66(a), UCMJ, be given effect over the general provision, 49 U.S.C. § 323(a). Thus, Congress gave the power to appoint the judges of the Coast Guard Court of Military Review to the Judge Advocate General, and not to the Secretary.

The Appointments Clause precludes Congress from placing the power to appoint inferior officers in anyone other than the President alone, the Courts of Law, or the Heads of Departments. U.S. Const. Art. II, § 2, Cl. 2; *Freytag v. Comm'r of Internal Revenue*, 111 S. Ct. 2631, 2642 (1991). Military judges, who exercise extraordinary authority and discretion, are Officers of the United States and are subject to the Appointments Clause. *Weiss v. United States*, 114 S. Ct. 752, 757 (1994).

After this Court's decision in *Weiss*, the only question remaining with respect to the appointment of military judges is the appointment of civilians as appellate military judges on the service Courts of Military Review. After the Court of Military Appeals' decision in *Carpenter*, the only question is whether the *de facto* appointment rationale, coupled with an after-the-fact appointment by the service Secretary, can be relied upon to affirm the acts of civilians appointed to serve as military appellate judges by the Judge Advocate General.

The Court of Military Appeals upheld Carpenter's conviction and sentence, despite the improper appointment of Chief Judge Baum of the Coast Guard Court of Military Review, a civilian, by relying on the *de facto* appointment rationale. *Carpenter*, 37 M.J. at 295. In reaching that result, however, the court devoted only a single sentence to discussing the issue, and cited only one case, *Buckley v. Valeo*, 424 U.S. 1. (1976). However, *Buckley* was an action seeking declaratory and injunctive relief to enjoin the operation of the statutory provisions concerning the Federal Election Commission, not a direct appeal of a criminal conviction, and does not support the action of the lower court.

The *de facto* officer doctrine was developed to limit the circumstances in which government actions can be challenged by attacking the title of the officeholder responsible

for the action. The principal harm that the doctrine was intended to prevent arises when the attack occurs long after the appointment is made, and the defect is of a technical nature that could have and would have been readily cured had it been called to the government's attention in a timely fashion. The *de facto* appointment rationale has been applied to limit the consequences of improper appointments of officeholders, particularly when many innocent third parties would be harmed by their reliance on the acts of the improperly appointed official, as in *Buckley*. The doctrine is clearly not simple. See *Andrade v. Lauer*, 729 F.2d 1475, 1496-1501 (D.C. Cir. 1984). It has apparently never been applied in a case like this. If it is to be extended to these circumstances, it should be done by this Court, with a full discussion of the matter.

Most of the cases in which the *de facto* officer doctrine has been applied are civil cases, not criminal, and the criminal cases have most often involved collateral attacks on state criminal convictions in federal court. See *United States ex rel. Doss v. Lindsley*, 148 F.2d 22 (7th Cir.), cert. denied, 325 U.S. 858 (1945); *Ryan v. Tinsley*, 316 F.2d 430 (10th Cir.), cert. denied, 375 U.S. 17 (1963); see also *Ex parte Ward*, 173 U.S. 452, 454 (1899) (doctrine used in criminal case to defeat collateral attack on validity of judge's title to office).

The inapplicability of the doctrine to this case can be seen most easily by examining those cases in which it was not applied, but where the doctrine would have provided an easy way to dispose of the case had it been relevant. Thus, in *Freytag v. Comm'r of Internal Revenue*, 111 S. Ct. 2631 (1991), this Court could have avoided deciding the question of whether the Tax Court was a Court of Law or a Department under the Appointments Clause since the special trial judges there were clearly at least *de facto* of-

ficers. Similarly, in *Morrison v. Olson*, 487 U.S. 654 (1988), determination of the constitutionality of the independent counsel would have been unnecessary since the doctrine, had it been applicable, would have sufficed to allow the independent counsel to enforce a grand jury subpoena, which was the specific action challenged there. In *Glidden Co. v. Zdanok*, 370 U.S. 530 (1962), which involved both civil and criminal cases, if the *de facto* officer doctrine were available, the Court would have been able to decide the cases on narrower grounds. See *Id.* at 534. Finally, in *United States v. Woodley*, 751 F.2d 1008 (9th Cir. 1985) (en banc), *cert. denied*, 475 U.S. 1048 (1986), the court of appeals in a direct criminal appeal upheld a recess appointment of a district judge in the face of a claim that the appointment was inconsistent with Article III, yet none of the opinions even mentioned the *de facto* officer doctrine.

It is possible that all of the Justices, judges, and counsel involved in all of these and other cases, such as *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50 (1982), simply overlooked the *de facto* officer doctrine, but that seems unlikely. However, the failure to rely upon the doctrine in any of those cases is best explained by its inapplicability either to a direct attack on a statutory scheme or, as here, when a judge or prosecutor directly involved in a case has allegedly been appointed in violation of the Constitution.

Two decisions of the District of Columbia Circuit of the U.S. Court of Appeals in which the *de facto* officer doctrine was discussed are instructive. *Andrade v. Lauer*, 729 F.2d 1475 (D.C. Cir. 1984), involved a challenge by current and former federal employees to actions of federal officials (a reduction in force). One of the bases of the challenge was that the officials had not been properly appointed. In response, those officials argued that the *de*

facto officer doctrine precluded any challenge of the actions of the officials on that ground. *Andrade*, 729 F.2d at 1496. The Court of Appeals noted that application of the doctrine in that case would apparently leave the plaintiffs without any remedy. *Id.* at 1497. The court rejected any interpretation of the doctrine "that would likely make it impossible for these plaintiffs to bring their assumedly substantial constitutional claim and would render legal norms concerning appointment and eligibility to hold office unenforceable." *Id.* at 1498. The court then placed two requirements on litigants challenging government actions on the ground that the officials taking those actions had not been properly appointed: first, the litigant must raise the challenge at or near the time the action is taken; second, the litigant must show that the agency involved had reasonable notice of the alleged defect. *Id.* at 1499.

Applying the analysis of *Andrade* to petitioner's case would seem to preclude reliance on the *de facto* officer doctrine to affirm his conviction. If the doctrine is applied, it leaves him without a remedy for the violation of his right to have his court-martial reviewed by a Court of Military Review composed of military appellate judges who have been properly appointed. He raised the appointment issue while his case was being reviewed by the Court of Military Review. App. 24a. The court was on notice of the alleged defect because it had previously been raised as an issue in another case. App. 25a; *United States v. Prive*, 35 M.J. 569 (C.G.C.M.R. 1992), *aff'd*, 39 M.J. 28 (C.M.A.), *cert. pending*, No. 93-966, 62 U.S.L.W. 3429 (1993).

The other recent case in which the District of Columbia Circuit discussed the *de facto* officer doctrine is *Federal Election Comm'n v. NRA Political Victory Fund*, 6 F.3d 821 (D.C. Cir. 1993), *cert. granted*, No. 93-1151, 129 L. Ed. 2d 832 (1994). There, an issue concerning the constitutionality of the composition of the Federal Election Com-

mission was raised as a defense to the action of the Commission in a civil enforcement action. *Id.* at 822. The Commission argued that the issue was not justiciable because the *de facto* appointment doctrine would prevent the NRA from obtaining a remedy based on that issue in any event. *Id.* at 828. The court rejected an application of the doctrine that would deny the NRA relief. *Id.* The court noted that this Court, in *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*, 458 U.S. 50 (1982), when it found that the scheme by which bankruptcy judges were appointed was unconstitutional, provided relief to the party who challenged the scheme even though the opinion was to act prospectively only. *FEC v. NRA*, 6 F.3d at 828.

The only federal criminal case found in which the doctrine was relied on to sustain a conviction on direct appeal is *McDowell v. United States*, 159 U.S. 596 (1895). Not only was the doctrine merely an alternative basis for affirming the conviction, but the facts of *McDowell* are very different from this case. The defect alleged in *McDowell* was that proper procedures had not been followed in arranging for an assignment of a duly appointed federal judge from one district to sit in another district. The judge in question had not presided over the defendant's trial, nor was he present when the grand jury had returned the indictment. Rather, the only defect was that he was presiding when the grand jury was first sworn and impaneled, and even then a properly appointed judge may have re-sworn the grand jurors before the indictment was handed down. Under those circumstances, this Court refused to overturn defendant's conviction for what was at worst a highly technical violation of a statute. In addition, the fact that *McDowell* was cited in *Glidden*, 370 U.S. at 535-36, makes it very unlikely that the *de facto* officer doctrine was overlooked in *Glidden*.

It would be particularly harsh to apply the doctrine in a criminal case involving a structural defect of constitutional dimensions, since it is unlikely that anyone could ever challenge the practice before being adversely affected by some act of that officer. Indeed, if the doctrine were relevant in a case like this, it would always be determinative of any question concerning appointment to office, precluding a ruling on the merits of the constitutional claim because to do otherwise would be to render an advisory opinion. In other words, the use of the *de facto* officer doctrine as it was applied by the Court of Military Appeals in *Carpenter, supra*, and in this case, would effectively remove all such claims from judicial review and thereby allow Congress or the Executive to violate the explicit provisions of the Appointments Clause with impunity, because the *de facto* officer doctrine would always prevent a court from setting aside the challenged action.

CONCLUSION

The validity of the appointment of civilians as military appellate judges under the Appointments Clause is a significant constitutional question which this Court should address. As it did in *Weiss*, this Court should grant review to resolve this issue as promptly as possible.

For the reasons stated, petitioner prays that this Court grant review of the question presented in order to bring the military court-martial system into line with the requirements of the Appointments Clause.

Respectfully submitted,

ALLEN LOTZ
Lieutenant Commander, U.S.
Coast Guard
Commandant (G-L-5)
U.S. Coast Guard
2100 2nd Street, S.W.
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(202) 267-0115
Attorney for Petitioner

APPENDIX A

U.S. COURT OF MILITARY APPEALS

No. 68,449/CG
CMR No. 947

UNITED STATES, APPELLEE

v.

JAMES D. RYDER, BOATSWAIN'S MATE SECOND CLASS,
U.S. COAST GUARD, APPELLANT

Argued October 7, 1993
Decided June 23, 1994

39 M.J. 454

For Appellant: Lieutenant Commander Allen Lotz
(argued).

For Appellee: Lieutenant Garland M. Walker (argued).

Military Judges: Thomas W. Snook, Philip F. Roberts
(USN), Douglas A. Smith.

Opinion of the Court

WISS, Judge:

Appellant entered uniform pleas of not guilty to an extensive laundry list of drug-related allegations at his general court-martial comprised of officer and enlisted members. Succeeding in some instances, he nonetheless was convicted of using marijuana (11 specifications), lysergic acid diethylamide (LSD) (3 specifications), and cocaine; distributing LSD; and soliciting Coast Guard personnel to use and to distribute LSD (one specification each), in violation of Articles 112a and 134, Uniform Code of Military Justice, 10 U.S.C. §§ 912a and 934, respectively. The court-martial sentenced him to a dishonorable discharge, confinement for 5 years, forfeiture of \$699.00 pay per month for 60 months, and reduction to the lowest enlisted grade.

The convening authority reduced the period of confinement to 3 years and of forfeitures to 36 months but in all other respects approved the trial results. The Court of Military Review set aside the finding of one of the uses of marijuana as not supported by the evidence; the court, however, affirmed the remaining findings and the sentence. 34 M.J. 1077, 1082 (1992).

On appellant's petition, we granted review to consider whether "improperly introduced and admitted evidence resulted in appellant's wrongful conviction."¹ Appellant's complaint of evidentiary error actually involves three distinct aspects of the evidence, none of which was the object of a timely objection at trial. For the reasons dis-

¹ Additionally, we granted appellant's petition on two issues which now have been decided against him. See *Weiss v. United States*, ____ U.S. ____, 114 S.Ct. 752 (1994); *United States v. Carpenter*, 37 M.J. 291 (C.M.A.), *cert. pending*, No. 93-676, 62 U.S.L.W. 3411 (1993).

cussed, *infra*, we decide that none of the three was plain error that resulted in "appellant's wrongful conviction." See *United States v. Toro*, 37 M.J. 313 (C.M.A. 1993); *United States v. Fisher*, 21 M.J. 327 (C.M.A. 1988).

I

Without defense objection, Dr. Ray Liu, the Government's expert toxicologist, testified that urine samples taken from appellant on January 4, 23, and 30, and March 3, 1989, each contained the metabolite for marijuana called tetrahydrocannabinol (THC). Trial counsel offered this evidence to corroborate testimony of government witnesses that they had seen appellant smoke marijuana on January 6 and 7 and on February 15, 1989, and testimony of witnesses that appellant had bragged about being able to beat urinalyses.

For the first time on appeal, appellant has urged that Dr. Liu's testimony was inadmissible because, in each instance, the urinalysis reflected a measure of THC below that which Coast Guard regulations treat as "positive" for its presence. He now relies upon our decision in *United States v. Arguello*, 29 M.J. 198 (C.M.A. 1989), as the legal basis of his contention. We hold that admission of this testimony was not plain error so as to overcome appellant's failure to object at trial. See Mil.R.Evid. 103(a)(1) and (d), Manual for Courts-Martial, United States, 1984.

A

Presence of THC in urine is measured in nanograms per milliliter (ng/ml). The laboratory that tested appellant's four urine samples reported detection of THC at the levels of 11.14, 7.58, 5.8, and 7.76 ng/ml, respectively. To put appellant's complaint into perspective, it is necessary here to give some attention to certain Coast Guard regulatory provisions.

Article 20-C-3b(2)(a) of Coast Guard Personnel Manual, Commandant Instruction M1000.6A, Change 1 (21 July 1988), instructs that "urine samples which test positive for" a drug "in a screening test will be" confirmed by "using gas chromatography/mass spectrometry (GC/MS) technology." The provision continues:

A cutoff level has been established for each drug which will ensure the reliability of any finding that the drug is present in the sample. A laboratory finding by GC/MS that the drug is present at or above the cutoff level will be reported as "confirmed positive" and is evidence of drug abuse.

For the presence of THC, the "cutoff level" that is "evidence of drug abuse" is 50 ng/ml, *see* Art. 20-C-3c(4), while a "confirmed positive" below that level only "is evidence that THC is present in the member's system and requires investigation," *see* Art. 20-C-4c. In fact, 4c then expressly states:

It [a reading below 50 ng/ml] is not sufficient to establish a drug incident unless there is additional evidence indicating intentional use of drugs, in which case the test result may be used as corroborating evidence to establish a drug incident.

Consistent with this language, Article 20-C-5b reads:

The absence of a positive urinalysis test result, or a test result below 50 ng/ml for THC, does not preclude taking disciplinary or administrative action based on other evidence.

In sum, these provisions contemplate that a confirmed positive reading of THC at a level of 50 ng/ml or higher will, itself, support a conclusion of drug abuse, while a reading of lower than 50 ng/ml only is evidence of drug presence which does not alone support a conclusion of

drug abuse, but which may be used to corroborate other evidence of intentional drug use. This scheme reflects a sliding-scale of reliability of urinalysis results that is the concern of Article 20-C-3b(2)(a), quoted earlier. *See also United States v. Arguello*, 29 M.J. at 204 (purpose of requiring minimum ng/ml levels to report "positive" result "is to protect the servicemember from adverse action based on unreliable scientific testing").

The Government seeks to distinguish this case from *Arguello* on the basis that the regulation in that case did not have the second prong that the regulation here has. The Government urges that, under the regulation in issue in *Arguello*, the question of "positive" was black or white: If test results were above a prescribed level, the report was "positive"; and if they were below (or nonexistent), it was "negative." The misstep in *Arguello*, the Government points out, was that the prosecution tried to transform a report that was "negative" under the regulation into one that was "positive" by providing expert testimony that the reading nonetheless did reliably show presence of the drug. The Court of Military Review expressed this same rationale in rebuffing appellant's claim of error. 34 M.J. at 1079.

The distinction *may not be* quite so clear, however, in light of yet another Coast Guard regulatory provision, which the Court of Military Review did not expressly consider. Paragraph 6d of Commandant Instruction 5355.1A (24 February 1988) stipulates:

Samples confirmed positive by GC/MS for THC will be reported in NG/ML, if the level detected is between 20 and 49 NG/ML. THC results at or above 50 NG/ML and all other drugs will be reported as "confirmed positive" only, indicating that the drug concentration level equals or exceeds the GC/MS minimum detection level specified for Coast Guard samples. . . .

A possible inference from this paragraph is that a reading *below 20 ng/ml* is not to be reported "positive" *at all*. In fact, as the court below acknowledged, Dr. Liu himself "testified that the procedure established by laboratory contract with the Coast Guard provides that results of GC/MS testing showing THC metabolites *below 15 nanograms are reported as negative.*" 34 M.J. at 1079 (emphasis added).

B

It is unnecessary here, however, for us to authoritatively interpret the Coast Guard regulations set out earlier and in the process to resolve the different views of the parties. In the absence of timely objection at trial, appellant has waived any appellate complaint unless admission of the evidence was plain error. Mil.R.Evid. 103(a)(1) and (d). We said in *Fisher*: "In order to constitute plain error, the error must not only be obvious and substantial, it must also have 'had an unfair prejudicial impact on the jury's deliberations.'" 21 M.J. at 328. Without deciding whether *Arguello* controls this case, it fairly may be argued that any error here was not obvious and substantial, since the regulations in question are not so clear-cut as was the regulation in *Arguello* and since this trial occurred before our decision in *Arguello*.

In any event, we are fully satisfied that any error did not operate to appellant's substantial prejudice. Art. 59(a), UCMJ., 10 USC § 859(a). Besides the fact that this evidence was only corroborative, rather than primary, appellant forthrightly attacked the reliability of such low readings. Most importantly, however, appellant actually embraced the test results as an offensive weapon to demonstrate that appellant had *not* used *LSD or cocaine* during the relevant period, as the Government had charged. Under similar circumstances in *Toro*, we concluded: "Admission

of the [evidence in question] was clearly part of the defense strategy, and it did not affect a substantial right of appellant." 37 M.J. at 317. We reach the same conclusion here.

II

Dr. Sandra Jo Counts testified as an expert witness for the prosecution concerning the effects of LSD. Appellant asserts for the first time on appeal that her testimony "served both as a polygraph for subsequent government witnesses, and as a vehicle to introduce prior consistent statements of those witnesses." Final Brief at 7. We hold that admission of Dr. Counts' testimony was not plain error. *See United States v. Fisher*, 21 M.J. 327.

In part pertinent to this appeal, Dr. Counts stated that she had interviewed four persons who had described to her their use with appellant on certain occasions of a substance that appellant had furnished. Subsequently in the trial, all four persons testified as government witnesses and gave similar accounts to the court-martial. She opined that, assuming the witnesses were "reliable," the substance that they had taken was LSD. When asked whether she had "any reasonable or significant doubt about that conclusion," she said:

Well, only that I didn't see it. *So, I am going on the word of what people told me. But if these people are reliable and I had no reason to think that they weren't being at the time, then I would still conclude that it was LSD.*

(Emphasis added.)

This Court repeatedly has denounced use of an expert witness as a human lie detector to vouch for the credibility of another witness or the accused. E.g., United States v. Partyka, 30 M.J. 242 (C.M.A. 1990); *United States v.*

Farrar, 28 M.J. 387 (C.M.A. 1989); *United States v. Arzuza*, 26 M.J. 234 (C.M.A. 1988), *cert. denied* 489 U.S. 1011, 103 L.Ed.2d 183, 109 S.Ct. 1120 (1989); *United States v. Petersen*, 24 M.J. 283 (C.M.A. 1987); *United States v. Cameron*, 21 M.J. 59 (C.M.A. 1985). The character of Dr. Counts' statement regarding the credibility of her interviewees is substantially the same as the character of the testimony in issue in *United States v. Partyka*, *supra* at 246:

"I assume that when a patient comes to me, that they are telling the truth, and *I assume that unless I have some reason to believe otherwise I have had no reason to believe otherwise.*"

(*Emphasis added.*) This Court condemned this testimony in *Partyka*, even to the point of holding it to be plain error. *Id.* at 247.

Here, however, the circumstances are different. Dr. Counts' statement arguably was not a continuing voucher for the witnesses' credibility, as was the case in *Partyka*; instead, in substance she might be heard simply to have accepted their reliability at face value for purposes of their interview. In this light, any error was not obvious and substantial.

Further, each of these witnesses later testified for themselves and thereby offered the members their own opportunity to judge the witnesses' credibility. We believe that, based on the full record, Dr. Counts' testimony did not have an unfair prejudicial impact on the members' deliberations either by vouching for the witnesses' credibility or by improperly bolstering their credibility with hearsay statements, *see* Mil.R.Evid. 801(d)(1)(B); *see also* *United States v. Neeley*, 25 M.J. 105, 106-08 (C.M.A. 1987) (regarding danger of "smuggling hearsay" evidence via expert testimony and danger of prejudice inconsequential when

declarant later testifies to same effect), *cert. denied*, 484 U.S. 1011, 98 L.Ed. 2d 660, 108 S.Ct. 710 (1988). Thus, appellant's failure to enter trial objections effectively waived any error. See *United States v. Fisher*, 21 M.J. 327.

III

While offering evidence on the twenty nine drug-related offenses charged against appellant, the prosecution's witnesses also revealed evidence of several drug-related incidents with which appellant was not charged. They involved other instances of alleged use of marijuana and other drugs, efforts to avoid detection through urinalysis by use of other chemicals in his system, ignoring drug use by other servicemembers, and attempting to persuade witnesses not to testify against him at the instant court-martial.

In this Court, appellant complains that the sole purpose of this evidence was improperly to paint his character in such a way as to lead the members to believe that he acted in conformity with that character on the occasions charged. Mil.R.Evid. 404(b). Appellant raised no similar objection at trial, however, so again his appellate cries of foul have been waived absent a finding of plain error. Mil.R.Evid. 103(a)(1) and (d). We find none. See *United States v. Fisher*, *supra*.

Applying the three-part test articulated in *United States v. Reynolds*, 29 M.J. 105, 109 (C.M.A. 1989), and reiterated in *United States v. Cousins*, 35 M.J. 70, 74 (C.M.A. 1992), there would not seem to be any error at all, much less error that was obvious and substantial. The evidence of uncharged misconduct all fairly may be viewed as part of the *res gestae* of the charged offenses—closely linked to the charged offenses in time, place, and circumstance—and admissible to help explain and clarify the

pattern of appellant's drug abuse and efforts to avoid detection that was reflected in the charged offenses. See *United States v. Metz*, 34 M.J. 349, 351 (C.M.A. 1992). Further, considering the extensive and varied pattern of drug-related charges facing appellant, it is difficult to imagine how evidence of a relatively small number of similar uncharged incidents could have offered a danger of unfair prejudice that would substantially outweigh the probative value of the evidence. See Mil.R.Evid. 403.

Additionally, there is no chance at all, in our view, that the challenged evidence had an unfair prejudicial impact on the members' deliberations. The evidence of appellant's guilt was abundant. Moreover, the members themselves capably demonstrated an ability to focus the evidence with laser-like precision on the offenses charged by acquitting appellant on nearly one-third of those offenses.

IV

The decision of the United States Coast Guard Court of Military Review is affirmed.

Chief Judge SULLIVAN and Judges COX, CRAWFORD, and GIERKE concur.

11a

APPENDIX B

**U.S. COAST GUARD COURT OF MILITARY
REVIEW**

**CGCM 0034
Docket No. 947**

UNITED STATES

v.

**JAMES D. RYDER, BOATSWAIN'S MATE SECOND CLASS,
U.S. COAST GUARD**

April 27, 1992

34 M.J. 1077

**Military Judge: (12 June 1989) CAPT Thomas W. Snook,
USCG**

**Military Judge: (19 July 1989) CAPT Philip F. Roberts,
JAGC, USN**

**Military Judge: (21-25 August 1989) CAPT Douglas A.
Smith, USCG**

Trial Counsel: LCDR Lawrence I. Kiern, USCG

**Civilian Defense Counsel: Kevin Hogan, Esquire, (21-25
August 1989)**

**Detailed Defense Counsel: LT Michael Forney, JAGC,
USNR, (12 June, 19 July and 21-25 August 1989)**

Appellate Defense Counsel: LCDR G. Arthur Robbins,
USCG

Appellate Government Counsel: LCDR Michael J.
Devine, USCG

BEFORE PANEL ONE, BAUM, BRIDGMAN, and SHKOR,
Appellate Military Judges.

BAUM, Chief Judge:

At a trial held on 12 June, 19 July and 21-25 August 1989, Appellant pled not guilty to numerous offenses before a general court-martial composed of officers and enlisted members. Despite his pleas, the court convicted Appellant of one specification of distribution of lysergic acid diethylamide (LSD) and fifteen specifications of wrongful use of controlled substances, which included marijuana, LSD and cocaine, in violation of Article 112(a), Uniform Code of Military Justice (UCMJ); and two specifications of solicitation of Coast Guard members to use or distribute drugs in violation of Article 134, UCMJ. He was sentenced to reduction to E-1, forfeiture of \$699 per month for 60 months, confinement for 5 years and a dishonorable discharge. The convening authority approved the reduction and discharge as adjudged but mitigated the forfeitures to \$699 per month for 36 months and the confinement to 3 years. Before this Court, Appellant briefed and orally argued the following two assignments of error:

I

IMPROPERLY INTRODUCED AND ADMITTED EVIDENCE RESULTED IN APPELLANT'S WRONGFUL CONVICTION

II

APPELLANT WAS DENIED DUE PROCESS OF LAW AND RECEIVED A DISPROPORTIONATE SENTENCE DUE TO THE MILITARY JUDGE UNDULY EMPHASIZING THE DETERRENT FUNCTION OF SENTENCING WHEN HE RESPONDED TO AN INQUIRY FROM THE MEMBERS DURING SENTENCING DELIBERATIONS

During oral argument, a motion to assign the following supplemental error was granted from the bench and briefs from appellate defense and Government were submitted:

III

APPELLANT WAS DENIED EFFECTIVE ASSISTANCE OF COUNSEL IN VIOLATION OF THE SIXTH AMENDMENT TO THE CONSTITUTION AND ARTICLE 27, UCMJ, 10 U.S.C. § 827.

Assignment of Error I

IMPROPERLY INTRODUCED AND ADMITTED EVIDENCE RESULTED IN APPELLANT'S WRONGFUL CONVICTION

In Assignment of Error I, Appellant contends that he was convicted as a direct result of the admission of three clusters of inadmissible evidence: (1) urinalysis test results showing tetrahydrocannabinol (THC) metabolite at levels below the Coast Guard cutoff for reporting samples as positive, accompanied by inadmissible testimony from an expert witness, (2) testimony by a second expert concerning the reliability of government witnesses who reported the use of lysergic acid diethylamide (LSD), including improper introduction of prior consistent statements by those witnesses, and (3) evidence of uncharged misconduct.

Urinalysis Test Results

The facts with respect to the urinalysis test results are that four separate urine samples, stipulated to have been provided by Appellant, were admitted in evidence without objection, along with the laboratory reports of gas chromatography/mass spectrometry (GC/MS) testing done on each sample, also admitted without objection by the defense. The director of the laboratory, Dr. Ray Liu, was qualified as an expert witness and testified that the reports showed that GC/MS testing had been conducted on all the samples and reflected THC metabolites in each of the samples at the following levels: 11.14 nanograms per milliliter, 7.58 nanograms per milliliter, 5.8 nanograms per milliliter and 7.76 nanograms per milliliter. He further testified that the procedure established by laboratory contract with the Coast Guard provides that results of GC/MS testing showing THC metabolites below 15 nanograms are reported as negative. Dr. Liu, when asked to correlate the various test results with possible marijuana ingestion on dates testified to by various witnesses, expressed the opinion that, because of the elapsed time between the observed ingestion and the testing, the nanograms of THC metabolite shown by GC/MS analysis indicated either one-time ingestion of a large quantity of marijuana or chronic use of smaller amounts. No objections were interposed to any of this testimony.

Appellant, citing *U.S. v. Arguello*, 29 M.J. 198 (C.M.A. 1989) and *U.S. v. Gray*, 30 M.J. 231 (C.M.A. 1990), now asserts that admission of the test results and Dr. Liu's testimony was plain error. The Government, in response, submits that admission of the urinalysis findings as well as Dr. Liu's testimony was not plain error and that any issue in this regard should be deemed waived by Appellant's failure to object at trial. The Government notes

that the instant trial was held before the decisions in *U.S. v. Arguello, supra*, and *U.S. v. Joyner*, 29 M.J. 209 (C.M.A. 1989), cases involving urinalysis test results below departmental cutoff levels. The Government says, however, that even considering those cases as persuasive authority on the subject, the facts here distinguish the instant case from *Arguello* and align it more closely with *Joyner*, which upheld the admission of urinalysis evidence below a level set by the Department of Defense.

While we are not convinced as to this case's similarity with *Joyner*, as seen by the Government, we do distinguish the instant facts from *U.S. v. Arguello, supra*, as well as from *U.S. v. Gray, supra*, the other decision cited by Appellant. Both of those cases were governed by Department of Defense regulations which bar disclosure or use of test results below the established level for a positive result. The Coast Guard, which is not a part of the Department of Defense, has regulations which do not expressly prevent use of test results below a certain point as corroborating evidence in a court-martial.

The Government notes that the Coast Guard regulations do provide that only urinalysis tests showing nanograms above a certain magnitude may be used as the *sole* basis for administrative or disciplinary action. Here, while the results were below that specified level, they were used only to *corroborate* the testimony of witnesses who observed the accused smoking marijuana on specific dates. Accordingly, we find that use of this evidence did not contravene the express terms of Coast Guard Regulations and did not constitute plain error. The fact that the nanograms per milliliters in each instance were below that called for in Coast Guard regulations for use as the only evidence of marijuana ingestion goes only to the weight of the evidence as corroboration, not to its admissibility. Plain error was not committed and the waiver rule applies. Appellant's assignment in this regard is rejected.

Expert Testimony Concerning LSD

Appellant asserts that the testimony of a second expert witness, Dr. Sandra Jo Counts, concerning the effects of LSD served to vouch for the truthfulness of subsequent government witnesses who testified to use of LSD by Appellant, and, thus, impermissibly invaded the province of the factfinder. Appellant also contends that this expert's testimony was improperly used as a means for introducing prior consistent statements of the government witnesses. Appellant failed to object to this testimony at trial, and the Government asserts waiver.

Appellant's failure to object constituted waiver. Aside from waiver, however, we consider the expert's testimony to be proper in all respects. While the opinions expressed by the expert rested on facts related to her by government witnesses, that is fairly routine with respect to expert opinion. It does not mean that the expert is vouching for the truth of the facts, simply that the expert opinion concerning LSD flowed from the asserted facts. It was left to the court to determine whether the underlying testimony was true or not. In our view, the expert was simply saying that the facts related by the witnesses, if deemed to be true, are consistent with LSD use. Appellant's assigned errors with respect to this testimony are rejected.

Testimony of Uncharged Misconduct

As a separate matter, Appellant assigns as error that numerous instances of uncharged misconduct were related to the court by government witnesses. As before, the complained of testimony was not objected to at trial and again, we deem the issue waived. Accordingly, Appellant's Assignment of Error I is rejected in its entirety.

Assignment of Error II

APPELLANT WAS DENIED DUE PROCESS OF LAW AND RECEIVED A DISPROPORTIONATE SENTENCE DUE TO THE MILITARY JUDGE UNDULY EMPHASIZING THE DETERRENT FUNCTION OF SENTENCING WHEN HE RESPONDED TO AN INQUIRY FROM THE MEMBERS DURING SENTENCING DELIBERATIONS

In his second assignment of error, Appellant contends that he was denied due process of law and received a disproportionate sentence as a result of the military judge's response to an inquiry from the court members. Appellant says that the judge's statement unduly emphasized the deterrent function of sentencing. The facts relating to this assignment are that midway through sentence deliberations, the members submitted a question to the judge asking whether the court could make a written statement in conjunction with its sentence. That statement, after characterizing the accused's offenses, said:

We fervently hope that enough of the details of this and other similar cases can be extracted from the record and published so it can be available to commanding officers to use as training material. If so, perhaps the message to our people can get through that:

1) If you do things like this, in the long term you will not get away with it.

2) When you get caught, it will be a painful experience not only for you, but for others around you, including your family.

3) It can happen anywhere if the people in responsible positions don't keep their eyes and ears open and do their job.

Record of Trial Appellate Exhibit XXXIX.

Upon reading that proposed statement, the judge said to the members in open court:

Gentlemen, having closely examined Appellate Exhibit 39, I can understand your concerns and feelings that's [sic] expressed in this. However, under the circumstances, I believe it would be inappropriate to make that sort of pronouncement in the Court when you announce the sentence. I believe the content of the sentence that you announce will, by its content, convey the message that is contained in this exhibit.

Record at 1295.

The defense made no objection to this instruction, nor did it request a session out of the presence of the members to read the statement and state its position to the judge. Here, for the first time, Appellant objects to the judge's remarks and claims they led directly to a disproportionate sentence by emphasizing the deterrent function of sentencing.

Appellant contends that the plain inference to be drawn from the judge's words accompanying his ruling not to allow the court's statement was that the court should impose a severe enough sentence to communicate its message. The Government, in response, says that interpretation stretches the judge's instruction beyond its natural meaning. In the Government's view, the judge was simply telling the members that he would not allow the court to read a possibly confusing statement into the record in conjunction with the sentence. In any event, according to the Government, "[t]he defense may not sit idle if they do not concur with the procedure adopted by the Military Judge. If defense counsel deems instructions to be unclear or imprecise, there is an obligation for counsel to object or seek clarification." Government's Brief at 15. The Government submits that, assuming *arguendo* that

somehow the judge's explanation was in error, it did not amount to plain error and the defense's failure to object waives the issue. We agree.

Moreover, we also agree with the Government's assertion that the number and nature of the offenses, in combination with the surrounding circumstances, warranted the adjudged sentence. The accused, a second class petty officer, used drugs over a substantial period of time and was also convicted of distributing LSD. Furthermore, he was senior member of his duty section and used drugs while underway in a Coast Guard boat. The maximum punishment authorized for his offenses included 68 years confinement. We agree with the Government that the sentence imposed, which includes only five years confinement, simply cannot be characterized as disproportionate. Appellant's second assignment of error is rejected.

Assignment of Error III

APPELLANT WAS DENIED EFFECTIVE ASSISTANCE OF COUNSEL IN VIOLATION OF THE SIXTH AMENDMENT TO THE CONSTITUTION AND ARTICLE 27, UCMJ, 10 U.S.C. § 827.

In his last assignment of error, Appellant argues that he was denied effective assistance of counsel in violation of the Sixth Amendment to the Constitution and Article 27, UCMJ. In support of this contention, Appellant points to counsel's failure to object to the evidence described in Assignment of Error I as inadmissible. He also cites the defense's failure to examine the court members' proposed sentencing statement and the failure to object to the judge's instruction in that regard. Additionally, Appellant says that counsel failed to conduct any prior independent investigation of the urinalysis values and failed to cross-examine the expert witness, Dr. Liu, on the matter of the

urinalysis results being less than the amounts accepted as standard test deviation, or on the possibility of innocent ingestion producing such results. Appellant also faults counsel for not calling a defense expert to explain the ambiguity of the Government's evidence. Moreover, Appellant sees the failure to submit any post-trial assignments of error to the convening authority as further indication of ineffective representation. In Appellant's view these asserted failures, taken as a whole, fall well outside the range of professionally competent assistance, and constitute ineffective representation.

Similar assertions pertaining to another counsel were addressed by this Court in the companion case of *U.S. v. Puckett*, 32 M.J. 783 (C.G.C.M.R. 1991). As we stated in that case, the standard for reviewing such claims of ineffective representation is set out in *Strickland v. Washington*, 466 U.S. 668, 104 S.Ct. 2052, 80 L.Ed. 2d 674 (1984). That standard bears repeating here:

First, the defendant must show that counsel's performance was deficient. This requires showing that counsel made errors so serious that counsel was not functioning as the "counsel" guaranteed the defendant by the Sixth Amendment. Second, the defendant must show that the deficient performance prejudiced the defense. This requires showing that counsel errors were so serious as to deprive the defendant of a fair trial, a trial whose result is reliable.

Strickland v. Washington, 466 U.S. 668 at 687, 104 S.Ct. 2052 at 2064.

The counsel errors asserted by Appellant do not meet the test of *Strickland v. Washington*, *supra*. In an affidavit from Appellant's civilian attorney, filed with the Court by the Government, defense counsel explains his actions as part of overall strategy that had a reasonable basis

at the time. Appellant was maintaining his innocence in the face of numerous expected witnesses who would testify to the contrary. The accused planned to take the stand in his own defense, and he did just that, denying his guilt under oath. Technical objections to evidence that might have been sustained, if raised when first offered by the Government, would later prove fruitless upon that same evidence being presented as rebuttal to the accused's own testimony. In light of this conclusion, defense strategy was to forego such objections and concentrate, instead, on obtaining favorable testimony from prosecution witnesses on cross-examination. In line with this tactic, a decision was made not to attempt to discredit the government witnesses whose testimony on cross-examination might prove helpful.

We find counsel's trial and pretrial actions with respect to the charges against the accused were consistent with this strategy and not to be characterized as deficient. His actions at the sentencing stage of trial are also deemed to be reasonable. Those actions, as explained by counsel, are not considered to be errors on his part. Finally, the defense attorney's decision after trial not to submit assignments of error to the convening authority was consistent with his client's post-trial acknowledgment of guilt and desire to cooperate with the Government in an effort by the accused to obtain clemency. Counsel successfully pursued the clemency tack instead of asserting legal errors and ultimately obtained a reduction in the sentence from five years forfeitures and confinement to three years for both.

For the foregoing reasons, Appellant's third assignment of error is deemed to be without merit.

Appellant has noted that the finding of guilty of Specification 1 of Additional Charge I, which alleges that he used marijuana in or near Neah Bay on or about 30 November 1988, is not supported by the evidence. We

agree. Accordingly, the finding of guilty of Specification 1 of Additional Charge I is set aside and the Specification is dismissed. The remaining findings of guilty are deemed to be correct in law and fact.

We have reassessed the sentence in light of the finding of guilty that was set aside. Upon reassessment, we find the sentence legally correct and appropriate for the remaining offenses. We are convinced on the basis of the entire record that the remaining findings of guilty and sentence should be approved. Accordingly, the remaining findings of guilty and the sentence, as approved below, are affirmed.

Judges BRIDGMAN and SHKOR concur.

APPENDIX C

U.S. COAST GUARD
COURT OF MILITARY REVIEW

CGCM 0034
Docket No. 947

UNITED STATES

v.

JAMES D. RYDER, BOATSWAIN'S MATE SECOND CLASS,
U.S. COAST GUARD

July 6, 1992

34 M.J. 1259

Trial Counsel: LCDR Lawrence I. Kiern, USCG

Assistant Trial Counsel: LT Brian Schroeder, USCG

Civilian Defense Counsel: Kevin Hogan, Esquire, (21-25
August 1989)

Detailed Defense Counsel: LT Michael Forney, JAGC,
USNR, (12 June, 19 July and 21-25 August 1989)

Appellate Defense Counsel: LCDR G. Arthur Robbins,
USCG

Appellate Government Counsel: LT Garland M. Walker,
USCGR

BEFORE PANEL ONE, BAUM, BRIDGMAN, SHKOR and EDWARDS,¹ Appellate Military Judges.

PER CURIAM:

On 8 May, 1992, this Court ordered reconsideration of our decision of 27 April 1992, 34 M.J. 1077, in response to a motion by the Appellant. Subsequently, on 26 May 1992, Appellant filed the following assignments of error to be considered in addition to the three previously filed and adversely resolved by our earlier decision:

IV

APPELLANT'S CONVICTION MUST BE SET ASIDE BECAUSE DUE PROCESS REQUIRES THAT A JUDGE IN A CRIMINAL CASE HAVE A FIXED TERM OF OFFICE. *BUT SEE UNITED STATES V. GRAF*, 32 M.J. 809 (N.M.C.M.R. 1990), *PETITION GRANTED*, 33 M.J. 189 (C.M.A. 1991) (MEM.).

V

APPELLANT'S COURT-MARTIAL LACKED JURISDICTION BECAUSE THE MILITARY JUDGE WAS DESIGNATED IN VIOLATION OF THE APPOINTMENTS CLAUSE OF THE CONSTITUTION.

VI

THE COURT OF MILITARY REVIEW IS WITHOUT POWER TO AFFIRM THE FINDINGS OF GUILTY AND SENTENCE BECAUSE THE APPELLATE MILITARY JUDGES ARE ASSIGNED IN VIOLATION OF THE APPOINTMENTS CLAUSE OF THE CONSTITUTION.

¹ Judge Edwards did not participate in this decision.

Upon reconsideration of our prior decision, we adhere to the determination therein with respect to Assignments of Error I, II and III. With respect to the newly asserted errors, Assignments V and VI were briefed and orally argued before Panel Five of this Court in the case of *U.S. v. Prive*, 35 M.J. 569 (C.G.C.M.R. 1992). That panel's decision is deemed dispositive of those issues and we follow the holding in that case.

Assignment of Error IV was summarily assigned as an error in *U.S. v. Prive, supra*. It has been briefed in the instant case and, among other things, Appellant argues that the United States Navy-Marine Corps Court of Military Review decided this issue wrongly in *U.S. v. Graf*, 32 M.J. 809 (N.M.C.M.R. 1990), *Petition Granted*, 33 M.J. 189 (C.M.A. 1991) (MEM.). He contends that we should reject that Court's analysis in *U.S. v. Graf, supra*, and, instead, find that due process requires a fixed term of office for general court-martial and appellate military judges. To the contrary, we must reject Appellant's assignment because we find *U.S. v. Graf, supra*, to be correctly decided.

In light of the foregoing, upon reconsideration, our decision of 27 April 1992 setting aside the finding of guilty of Specification 1 of Additional Charge I, affirming the remaining findings of guilty, and affirming the sentence is reaffirmed.

Chief Judge BAUM and Judges BRIDGMAN and SHKOR CONCUR.

APPENDIX D**RELEVANT PROVISIONS OF THE
UNIFORM CODE OF MILITARY JUSTICE****10 U.S.C. § 866. Art. 66. Review by Court of Military Review**

(a) Each Judge Advocate General shall establish a Court of Military Review which shall be composed of one or more panels, and each such panel shall be composed of not less than three appellate military judges. For the purpose of reviewing court-martial cases, the court may sit in panels or as a whole in accordance with rules prescribed under subsection (f). Any decision of a panel may be reconsidered by the court sitting as a whole in accordance with such rules. Appellate military judges who are assigned to a Court of Military Review may be commissioned officers or civilians, each of whom must be a member of a bar of a Federal court or of the highest court of a State. The Judge Advocate General shall designate as chief judge one of the appellate military judges of the Court of Military Review established by him. The chief judge shall determine on which panels of the court the appellate judges assigned to the court will serve and which military judge assigned to the court will act as the senior judge on each panel.

* * *

(c) In a case referred to it, the Court of Military Review may act only with respect to the findings and sentence as approved by the convening authority. It may affirm only such findings of guilty, and the sentence or such part or amount of the sentence, as it finds correct in law and fact and determines, on the basis of the entire record, should be approved. In considering the record, it may weigh the evidence, judge the credibility of witnesses, and

determine controverted questions of fact, recognizing that the trial court saw and heard the witnesses.

* * *

(f) The Judge Advocates General shall prescribe uniform rules of procedure for Courts of Military Review and shall meet periodically to formulate policies and procedure in regard to review of court-martial cases in the offices of the Judge Advocates General and by Courts of Military Review.

(g) No member of a Court of Military Review shall be required, or on his own initiative be permitted, to prepare, approve, disapprove, review, or submit, with respect to any other member of the same or another Court of Military Review, an effectiveness, fitness, or efficiency report, or any other report or document used in whole or in part for the purpose of determining whether a member of the armed forces is qualified to be advanced in grade, or in determining the assignment or transfer of a member of the armed forces, or in determining whether a member of the armed forces should be retained on active duty.